

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
Fabian MacDonald,: Index Number:
Date Purchased:
: Date Filed:

Plaintiff : SUMMONS

-against- :

City of New York, New York City Police Department, :
Police Officer Alan Cepinarias, Shield 27189 of the 77 :
Precinct and New York City Police Officers John Doe, :Plaintiff's residence is:
: 1322 Prospect Place
Brooklyn, NYDefendants :
-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the incident occurred in Kings County.

Dated: October 27, 2022
Bronx, NY

Yours, etc.,

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(718) 585-2833

To: City of New York

New York City Police Department

Police Officer Alan Cepinarias, Shield 27189 of the 77 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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Fabian MacDonald,	:	
	:	
Plaintiff,	:	
	:	VERIFIED COMPLAINT
-against-	:	
	:	
City of New York, New York City Police Department,	:	
Police Officer Alan Cepinarias, Shield 27189 of the 77	:	
Precinct and New York City Police Officers John Doe,	:	
	:	
Defendants.	:	
-----X		

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Fabian MacDonald, (hereinafter referred to as “MACDONALD”) resides in New York County, State of New York.
2. That at all times hereinafter mentioned, Police Officer Alan Cepinarias, Shield 27189 of the 77 Precinct, (hereinafter referred to as “CEPINARIAS”) was employed by the New York City Police Department.
3. New York City Police Officers John Doe, those officers involved in the arrest of MACDONALD, (hereinafter referred to as “DOES) were employed by the New York City Police Department.

4. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

5. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

6. On or about November 9, 2021 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

7. On or about December 3, 2021 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiffs testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

8. That on or about August 31, 2021 at 1:00 PM in the vicinity of Utica Avenue and St. Lawrence Avenue, Brooklyn NY, Plaintiff and his girlfriend were engaged in a verbal argument when CEPINARIAS and DOES approached them to speak with them.

9. That CEPINARIAS and DOES suggested that Plaintiff and his girlfriend walk away from one another.

10. That when CEPINARIAS and DOES walked away from Plaintiff and his girlfriend, Plaintiff attempted to walk towards his girlfriend to speak with her and CEPINARIAS and DOES pushed Plaintiff's back causing him to fall to the ground.

11. That when Plaintiff fell to the ground, CEPINARIAS and DOES jumped on top of Plaintiff wherein they handcuffed and arrested him.
12. That as a result of the actions of CEPINARIAS and DOES, Plaintiff sustained substantial injury to his right knee and left elbow.
13. That at no time had Plaintiff been engaged in any illegal or unlawful activity.
14. That at no time did Plaintiff act in a disorderly manner.
15. That at no time did Plaintiff obstruct governmental administration.
16. That at no time did Plaintiff resist a lawful arrest.
17. That after Plaintiff was arrested he was transported to the 77 precinct.
18. That when Plaintiff was removed to the 77 precinct he was subjected to a strip search and that nothing of an illegal nature was recovered.
19. That while at the 77 precinct, he was placed into a cell with other males for several hours.
20. That after several hours of being held in a cell at the 77 precinct, Plaintiff was removed to Kings County Central Booking located at 120 Schermerhorn Street, Brooklyn, NY.
21. That while at Kings County Central Booking, Plaintiff was held in a cell with other males for several hours.
22. That on or about September 1, 2021 Plaintiff was arraigned on docket CR-021534-KN where he was charged with Disorderly Conduct, Obstructing Governmental Administration and Resisting Arrest.
23. At the time of Plaintiff's arraignment, he was released on his own recognizance and ordered to return to court.

24. That on and between September 1, 2021 and October 27, 2021, Plaintiff made numerous court appearances until the matter was dismissed upon application of the Office of the Kings County District Attorney.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

25. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 24, as if more fully stated herein at length.

26. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

27. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

28. That as a result of the actions of Defendants, Plaintiff was seriously injured due to the intentional manner in which Defendants, their agents, servants, employees and/or licensees treated Plaintiff and he was wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

29. That as a result of the actions by Defendants, Plaintiff was traumatized and fears for his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

30. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

31. That as a result of the Defendants' actions, Plaintiff was forced to miss multiple days of work.

32. That as a result of the Defendants' actions, Plaintiff was forced to miss multiple days of school.

33. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

34. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 33, as if more fully stated herein at length.

35. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

36. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

37. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

38. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for

which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

39. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 38, as if more fully stated herein at length.

40. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

41. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

42. That prior to the time of arrest, after the arrest and during the pendency of the criminal case against Plaintiff, CEPINARIAS and DOES persisted in their false claim that Plaintiff acted disorderly, obstructed governmental administration and resisted a lawful arrest despite knowing that he did not. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

43. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 42, as if more fully stated herein at length.

44. At all times pertinent hereto, CEPINARIAS and DOES were acting within the scope of her employment as officers of the New York City Police Department and City of New York.

45. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that CEPINARIAS and DOES committed within the scope of her employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

46. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 45, as if more fully stated herein at length.

47. The City of New York and New York City Police Department's failure to provide adequate training and supervision to CEPINARIAS and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

48. The City of New York and New York City Police Department maintained a policy of arresting people and claiming that they acted disorderly, obstructed governmental administration and resisted arrest when in fact they did not.

49. The City of New York and New York City Police Department maintained a policy of not disciplining or terminating police officers who engaged in claiming that people acted disorderly, obstructed governmental administration and resisted arrest when they did in fact not.

50. The City of New York and New York Police Department were aware that CEPINARIAS was the subject of six (6) Civilian Complaint Review Board complaints and despite such, they continued to employ him.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

51. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 50, as if more fully stated herein at length.

52. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

53. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of

this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

Jason A. Steinberger, Esq.
Attorney for Plaintiffs
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(718) 585-2833

STATE OF NEW YORK: COUNTY OF BRONX

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: October 27, 2022

Jason A. Steinberger